

Swabhiman Breweries Private Limited v. Uttar Pradesh Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 7 February 2025 · 2025:AHC:18277-DB · Writ-C No. 1806 of 2025 ·
Writ disposed of; reconnection directed; Clause 6.5 application to be decided.

HEADNOTE

Disconnection of supply while a Clause 6.5 Electricity Supply Code, 2005 application remains pending is arbitrary. The licensee must restore the connection forthwith, decide the pending application after hearing the consumer, and take no coercive measures until that decision.

FACTUAL SUMMARY

The petitioner, Swabhiman Breweries Private Limited, had an application pending before the authorities under Clause 6.5 of the Electricity Supply Code, 2005. While that application remained undecided, the respondents disconnected the petitioner's electricity connection on 31 January 2025. The petitioner approached the Allahabad High Court against the disconnection and for a direction to decide the pending Clause 6.5 application.

REUSABLE CONSTRUCTIONS

1. Disconnection of supply while a Clause 6.5 application remains pending is arbitrary. ¶ 3-4
2. The licensee must restore the connection forthwith, decide the pending Clause 6.5 application after hearing the consumer, and take no coercive measures until that decision. ¶ 3-4

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disconnection pending Clause 6.5 application

HOLDING

Disconnection of a consumer's electricity supply while an application under Clause 6.5 of the Electricity Supply Code, 2005 remains pending is arbitrary. The authorities must reconnect immediately, preferably within three days; decide the pending Clause 6.5 application within two months after granting the consumer a hearing; and take no coercive measures until that application is decided. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PENDING CLAUSE 6.5 APPLICATION

Directed to be decided by the authorities within two months after hearing the petitioner. ¶ 3